

the moving party suggesting that Plaintiff filed an opposition. No such opposition, however, is on file. In addition, it will be more efficient to resolve *all* of these motions at the same time and to proceed thereafter, as warranted, with any further amended pleadings.

4. CU0002738 Roberta McGregor v. Victoria Yeager

Plaintiff/Cross-Defendant Roberta McGregor's motion for an order requiring Cross-Complainant Yeager to post security is denied.

Legal Standard

Pursuant to Code of Civil Procedure section 1030(a), a defendant sued by an out-of-state plaintiff "may at any time apply to the court by noticed motion for an order requiring the plaintiff to file an undertaking to secure an award of costs and attorney's fees which may be awarded in the action or special proceeding." In order to prevail on a motion for undertaking, the defendant must show that: (1) the plaintiff resides out of state; and (2) there is a "reasonable possibility" that the defendant will obtain a judgment in the matter. Code Civ. Proc. § 1030(b). A defendant need not show that there is no possibility of the plaintiff prevailing—only that it is reasonably possible that defendant will prevail. *Baltayan v. Estate of Getemyan* (2001) 90 Cal.App.4th 1427, 1432. Additionally, the motion must be accompanied by a supporting affidavit or declaration that sets forth the nature and amount of the costs the defendant has incurred and expects to incur. Code Civ. Proc. § 1030(b). Finally, "the determinations of the court under this section have no effect on the determination of any issues on the merits of the action . . . and may not be given in evidence nor referred to in the trial of the action or proceeding." Code Civ. Proc. § 1030(f).

Analysis

At bar, Plaintiff/Cross-Defendant McGregor fails to submit a supporting affidavit or declaration regarding the nature and amount of costs she has incurred and expects to incur, as required by Code of Civil Procedure § 1030(b). In addition, Plaintiff/Cross-Defendant has made no showing that it is reasonably possible she will prevail; a conclusory statement regarding likelihood of success is insufficient. The motion is denied.

5. CU0002046 Glenn Kalaveras, et al. v. Kelly Purves

One of the parties apparently reserved this date for the filing of a motion; none was filed. This matter is removed from calendar. The Court is cognizant of a request for approval of a good faith settlement by Defendant Takhar, set for hearing on November 13, 2026, with notice of the same. There is likewise a request for approval of a good faith settlement by Defendant Purves; there is no filed notice of hearing associated with that request. Defendant Purves is welcome to request a hearing date for that matter and can then notice the same for hearing.

6. CL0004441 Greg Zaller v. Identified Defendant

Appearances are required in connection with Defendant's motion to quash service of summons.